

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Isabelle James	Team: Squad #09	CCRB Case #: 201707029	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 08/19/2017 12:50 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 2/19/2019	Precinct: 34		
Date/Time CV Reported Fri, 08/25/2017 2:15 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 08/25/2017 2:15 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Carmen Mateo	02383	931810	034 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Ismael Perezortiz	14794	962682	034 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Carmen Mateo	Abuse: Sergeant Carmen Mateo threatened to arrest § 87(2)(b)	A . Unsubstantiated
B . SGT Carmen Mateo	Abuse: Sergeant Carmen Mateo entered § 87(2)(b) in Manhattan.	B . Substantiated
C . SGT Carmen Mateo	Discourtesy: Sergeant Carmen Mateo spoke discourteously to § 87(2)(b)	C . Unfounded

Case Summary

On August 25, 2017, § 87(2)(b) filed this complaint with the CCRB via the on-line website.

On August 19, 2017, at approximately 12:50 p.m., § 87(2)(b) was walking her dog outside her residence, § 87(2)(b) in Manhattan. The superintendent of § 87(2)(b)'s building, § 87(2)(b) had called 911 to report that § 87(2)(b) had broken the window on the front door of the building and had been urinating outside the building. Two officers, identified as Sergeant Carmen Mateo and Police Officer Ishmael Perez-Ortiz of the 34th Precinct, responded. The officers spoke to § 87(2)(b) who explained that § 87(2)(b) had broken the window, had been running around naked, and had urinated in front of the building. § 87(2)(b) stated that he and § 87(2)(b) had an ongoing dispute, in which she had harassed and previously threatened him with a knife.

The officers then spoke to § 87(2)(b) who explained that she had been illegally locked out of her building because § 87(2)(b) had changed the locks without telling her. § 87(2)(b) who had her dog with her while speaking to the officers, stated that Sgt. Mateo asked her what was wrong with her dog before allegedly saying, "I'm about to arrest you for animal abuse" (**Allegation A**). Sgt. Mateo then asked § 87(2)(b) to provide proof that her dog was receiving veterinary care. § 87(2)(b) explained that her dog was a service animal and that she likely had veterinary bills in her apartment. § 87(2)(b) led the officers inside her building and back to her apartment, § 87(2)(b)

When she entered her apartment, § 87(2)(b) attempted to close her door behind her, expecting the officers to wait outside. When § 87(2)(b) attempted to close her apartment door, Sgt. Mateo placed her foot on the threshold to prevent her from closing the door (**Allegation B**). § 87(2)(b) asked Sgt. Mateo to remove her foot from the door and Sgt. Mateo refused. Sgt. Mateo ordered § 87(2)(b) to leave the apartment and led her outside.

Once outside the building, Sgt. Mateo informed § 87(2)(b) that she had called EMS and they would decide if she was going to the hospital. While waiting for EMS, § 87(2)(b) spoke to PO Perez-Ortiz about his military status. § 87(2)(b) explained that she had worked for the CIA as a sub-contractor in the past. Approximately an hour after the officers arrived at the incident location, two EMTs, identified as EMT § 87(2)(b) and EMT § 87(2)(b) Jr. of FDNY, arrived on scene. The EMTs did not believe that § 87(2)(b) needed to go to the hospital after initially evaluating her. However, Sgt. Mateo asked the EMTs to call their supervisor because she strongly believed § 87(2)(b) needed a psychological evaluation.

Sgt. Mateo then told § 87(2)(b) that § 87(2)(b) had said she was running around naked outside the building. § 87(2)(b) stated that she would never run around naked. Sgt. Mateo allegedly replied, "At least not for free, right? People gotta pay to see that ass" (**Allegation C**). § 87(2)(b) believed that Sgt. Mateo was insinuating that she was a prostitute. Approximately ten minutes later, a FDNY Lieutenant arrived and spoke with § 87(2)(b). When § 87(2)(b) confirmed with the lieutenant that she had worked as a subcontractor for the CIA in the past but could provide no proof of her employment, the lieutenant ordered the EMTs to remove § 87(2)(b) to the hospital. § 87(2)(b) was removed to § 87(2)(b) § 87(2)(b)

Findings and Recommendations

Allegation A – Abuse of Authority: Sergeant Carmen Mateo threatened to arrest § 87(2)(b)

On August 19, 2017, at approximately 12:50 p.m., the superintendent of § 87(2)(b) in Manhattan, § 87(2)(b) called 911 to report that § 87(2)(b) had broken a window and was urinating in front of the building. Sgt. Mateo and PO Perez-Ortiz responded, and while the officers were conducting an investigation into the broken window, Sgt. Mateo asked § 87(2)(b) what was wrong with her dog. § 87(2)(b) explained that he dog had Cushing's disease, causing scabbing of the skin, among other symptoms. Sgt. Mateo allegedly replied, "I'm about to arrest you for animal abuse."

PO Perez-Ortiz testified that the officers asked what was wrong with § 87(2)(b)'s dog, and § 87(2)(b) replied that her dog had some kind of disease. The officer then asked § 87(2)(b) no further questions regarding the dog's health; however, a neighbor informed PO Perez-Ortiz that § 87(2)(b) takes very good care of her dog. Sgt. Mateo did not say that § 87(2)(b) would be arrested for animal abuse and § 87(2)(b) was not under arrest at any point. PO Perez-Ortiz did not see § 87(2)(b) commit any arrestable offenses.

Sgt. Mateo testified that she asked § 87(2)(b) about her dog's health, and when § 87(2)(b) stated that the dog had a disease causing the scabbing on her skin, she asked § 87(2)(b) no further questions. She denied saying, "I'm about to arrest you for animal abuse," and stated that § 87(2)(b) was not under arrest at any point. Sgt. Mateo did not tell § 87(2)(b) that she would be arrested and she had no discussion regarding animal abuse with § 87(2)(b).

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation B – Abuse of Authority: Sergeant Carmen Mateo entered § 87(2)(b) **in Manhattan.**

§ 87(2)(b) alleged that after Sgt. Mateo asked her to provide proof that her dog was receiving veterinary care, § 87(2)(b) went back into her apartment to find a veterinary bill. The officers followed § 87(2)(b) into her building and to her apartment door. § 87(2)(b) attempted to close her apartment door behind her while she was locating the veterinary bill, and as she was closing her door, Sgt. Mateo placed her foot on the threshold to block the door from closing. § 87(2)(b) asked Sgt. Mateo to remove her foot and Sgt. Mateo refused. § 87(2)(b) then called an officer from the 34th Precinct whom she knows from prior interactions with the 34th Precinct.

PO Perez-Ortiz testified that § 87(2)(b) informed the officers that § 87(2)(b) had threatened him with a knife in the past. When § 87(2)(b) went back to her apartment and the officers followed, PO Perez-Ortiz did not see Sgt. Mateo place her foot on the threshold of § 87(2)(b)'s door. He stated that § 87(2)(b)'s door was not closed at any point. However, PO Perez-Ortiz recalled that § 87(2)(b) attempted to close her door but did not recall what prevented the door from closing. At that time, PO Perez-Ortiz testified that the officers did not want § 87(2)(b) to

close her apartment door because they did not want her to have access to a weapon. PO Perez-Ortiz also stated that he believed § 87(2)(b) was “a little off” because her apartment was kept in poor condition, her dog did not appear to be well, and because § 87(2)(b) was crying, shaking, and appeared nervous.

Sgt. Mateo testified that when she was initially speaking to § 87(2)(b) § 87(2)(b) appeared eloquent and intelligent, but what she was saying did not make sense in the context of their conversation. § 87(2)(b) was talking about working for the CIA and the Joint Terrorism Task Force and Sgt. Mateo believed these statements were irrational. Sgt. Mateo also observed bloody scratches on § 87(2)(b)'s arms. § 87(2)(b) provided an explanation for how she had sustained the scratches; however, Sgt. Mateo did not recall this explanation.

§ 87(2)(b) then told the officers she was going to call an officer from the 34th Precinct and the officers followed her back to her apartment. At that time, Sgt. Mateo called for EMS to respond to the location. When § 87(2)(b) attempted to close her apartment door behind her, Sgt. Mateo placed her foot on the threshold, preventing the door from closing. Sgt. Mateo observed that the inside of § 87(2)(b)'s apartment was cluttered to a point that there were no clear paths for her to walk around. Based on this observation, Sgt. Mateo believed that § 87(2)(b) was a hoarder. Sgt. Mateo testified that § 87(2)(b) was not under arrest at any point, and that she had placed her foot in the door because she did not want § 87(2)(b) to harm herself or others. Sgt. Mateo did not ask for consent before placing her foot in the door. Other than § 87(2)(b) speaking irrationally, had scratches on her arms, and was living in hoarder-like conditions, there was nothing else that led Sgt. Mateo to believe that § 87(2)(b) was an imminent threat to herself or others.

Patrol Guide Procedure 221-13 states that an emotionally disturbed person who appears to be mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others. If an EDP is not immediately dangerous, the person should be contained until assistance arrives (**Board Review 4**).

People v. Mitchell, 39 N.Y.2d 173 stated that the entry and limited search of the defendant's room did not violate the U.S. Cont. amend. IV because it was reasonable in scope and justified in the emergency situation (**Board Review 5**). The police had reason to believe the maid might be in danger and in need of emergency assistance. The search for her was not motivated by an intent to arrest and seize evidence.

In Brighman City v. Stuart, 547 U.S. 398, the court held that it did not matter whether the officers entered the kitchen to arrest the defendants and gather evidence against them or to assist the injured and prevent further violence (**Board Review 6**). The officers had an objectively reasonable basis for believing that both the injured adult might need help and that the violence in the kitchen was just beginning.

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as **substantiated**.

Allegation C – Discourtesy: Sergeant Carmen Mateo spoke discourteously to § 87(2)(b) § 87(2)(b) alleged that once the EMTs arrived outside the building and were evaluating her, Sgt. Mateo informed § 87(2)(b) that § 87(2)(b) had stated that she had been running around naked outside the building. § 87(2)(b) replied that she would never run around naked, and Sgt. Mateo allegedly replied, “At least not for free, right? People gotta pay to see that ass.”

EMT § 87(2)(b) testified that he did not hear Sgt. Mateo say, “At least not for free, right? People gotta pay to see that ass,” in reference to § 87(2)(b) running around naked. EMT § 87(2)(b) stated that § 87(2)(b) had actually been the one to say that she would not run around naked, and if she did, people would have to pay to see her body. § 87(2)(b) then laughed at her own statement and the EMTs and officers laughed along with her.

EMT § 87(2)(b) testified that he did not recall hearing Sgt. Mateo say, “At least not for free, right? People gotta pay to see that ass.” He did not hear Sgt. Mateo insinuate that § 87(2)(b) was a prostitute at any point.

PO Perez-Ortiz denied hearing Sgt. Mateo say, “At least not for free, right? People gotta pay to see that ass.” He denied hearing Sgt. Mateo insinuate that § 87(2)(b) was a prostitute at any point.

Sgt. Mateo denied saying, “At least not for free, right? People gotta pay to see that ass.” She denied having any conversation with § 87(2)(b) about her running around naked and did not insinuate that she was a prostitute at any point.

§ 87(2)(g)

Thus, it is recommended that **Allegation C** be closed as **unfounded**.

Squad: **9**

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date